

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF DELAWARE**

ASTELLAS PHARMA INC., ASTELLAS
IRELAND CO., LTD., and ASTELLAS
PHARMA GLOBAL DEVELOPMENT,
INC.,

Plaintiffs,

v.

ZYDUS PHARMACEUTICALS (USA)
INC. and ZYDUS LIFESCIENCES
LIMITED

Defendants.

C.A. No. _____

JURY TRIAL DEMANDED

COMPLAINT FOR PATENT INFRINGEMENT

Plaintiffs Astellas Pharma Inc., Astellas Ireland Co., Ltd., and Astellas Pharma Global Development, Inc. (collectively, “Astellas” or “Plaintiffs”), by their undersigned attorneys, hereby allege as follows:

THE PARTIES

A. Astellas Pharma Inc., Astellas Ireland Co., Ltd., and Astellas Pharma Global Development, Inc.

1. Plaintiff Astellas Pharma Inc. (“API”) is a corporation organized and existing under the laws of Japan, having its principal place of business at 2-5-1, Nihonbashi-Honcho, Chuo-Ku, Tokyo 103-8411, Japan.

2. Plaintiff Astellas Ireland Co., Ltd. (“AICL”) is a corporation organized and existing under the laws of Ireland, having its principal place of business at Damastown Road, Damastown Industrial Park, Mulhuddart, Dublin 15, Ireland. AICL is a subsidiary of Plaintiff API.

3. Plaintiff Astellas Pharma Global Development, Inc. (“APGD”) is a corporation organized and existing under the laws of the State of Delaware, having its principal place of business at 2375 Waterview Drive, Northbrook, Illinois 60062. APGD is a subsidiary of Plaintiff API.

B. Zydus Pharmaceuticals (USA) Inc. and Zydus Lifesciences Limited (collectively, “Zydus”)

4. On information and belief, Defendant Zydus Pharmaceuticals (USA) Inc. is a corporation organized and existing under the laws of New Jersey, having a principal place of business at 73 Route 31 North, Pennington, New Jersey 08534.

5. On information and belief, Zydus Pharmaceuticals (USA) Inc. is in the business of, *inter alia*, developing, manufacturing, and/or distributing generic drug products for marketing, sale, and/or use throughout the United States including in this judicial district.

6. On information and belief, Defendant Zydus Lifesciences Limited is a corporation organized and existing under the laws of India, having a principal place of business at Zydus Corporate Park, Scheme No. 63, Survey No. 536, Khoraj (Gandhinagar), Nr. Vaishnodevi Circle, S.G. Highway, Ahmedabad, Gujarat 382 481, India, and a manufacturing facility at Matoda, Ahmedabad, India.

7. On information and belief, Zydus Lifesciences Limited is in the business of, *inter alia*, developing, manufacturing, and/or distributing generic drug products for marketing, sale, and/or use throughout the United States including in this judicial district.

8. By letters dated September 6, 2016 (“Zydus’s 2016 Notice Letter”), July 6, 2018 (“Zydus’s 2018 Notice Letter”), and March 3, 2021 (“Zydus’s 2021 Notice Letter”), Zydus notified Plaintiffs that Zydus had submitted to the FDA ANDA No. 209488 for mirabegron extended-release oral tablets, 25 mg, 50 mg (“Zydus ANDA”), a drug product that is a generic version of

Myrbetriq® extended-release tablets, in the 25 mg and 50 mg strengths (“Zydus’s 25 mg ANDA Product” and “Zydus’s 50 mg ANDA Product,” respectively; together, “Zydus’s ANDA Products”). On information and belief, the purpose of Zydus’s submission of the Zydus ANDA was to obtain approval under the Federal Food, Drug, and Cosmetic Act (“FDCA”) to engage in the commercial manufacture, use, offer for sale, and/or sale of Zydus’s ANDA Products at least prior to midnight on March 28, 2030.

9. In Zydus’s 2016 Notice Letter, Zydus’s 2018 Notice Letter, and Zydus’s 2021 Notice Letter, Zydus notified Plaintiffs that, as a part of the Zydus ANDA, Zydus had filed a certification of the type described in Section 505(j)(2)(A)(vii)(IV) of the FDCA, 21 U.S.C. § 355(j)(2)(A)(vii)(IV), with respect to some of the then-listed patents in the FDA’s Approved Drug Products with Therapeutic Equivalence Evaluations (“Orange Book”), asserting that they are invalid, unenforceable, and/or will not be infringed by the commercial manufacture, use, and sale of Zydus’s ANDA Products.

10. On November 24, 2020, Astellas brought suit against Zydus, asserting U.S. Patent No. 10,842,780 (“the ’780 Case”). (*See Astellas Pharma Inc. et al. v. Sandoz Inc. et al.*, C.A. No. 20-1589 (D. Del.), D.I. 1.)

11. On September 29, 2022, Zydus received final FDA approval for the Zydus ANDA (see **Exhibit B**, available at https://www.accessdata.fda.gov/scripts/cder/ob/results_product.cfm?Appl_Type=A&Appl_No=209488#42081) to market Zydus’s 25 mg ANDA Product and Zydus’s 50 mg ANDA Product.

12. On July 28, 2023, Astellas brought suit against Zydus, asserting United States Patent No. 11,707,451 (“the ’451 Patent”). (See *Astellas Pharma Inc. et al. v. Lupin Ltd. et al.*, C.A. No. 23-819 (D. Del.) (“the ’451 Case”), D.I. 1.)

13. In its Answer, Zydus did not dispute personal jurisdiction or venue in the ’780 Case or the ’451 Case. (See *Astellas Pharma Inc. et al. v. Sandoz Inc. et al.*, C.A. No. 20-1589 (D. Del.), D.I. 60 at ¶¶ 94-98; *Astellas Pharma Inc. et al. v. Lupin Ltd. et al.*, C.A. No. 23-819 (D. Del.), D.I. 20 at ¶¶ 16-21.)

14. Zydus commercially launched Zydus’s ANDA Products on or about April 19, 2024. (See **Exhibit C**, available at <https://www.biospace.com/zydus-launches-mirabegron-extended-release-tablets-in-the-us>.) Zydus’s Package Insert, revised February 2024, (“Zydus’s Label”) was submitted to the FDA. (See **Exhibit D**, available at <https://dailymed.nlm.nih.gov/dailymed/getFile.cfm?setid=2e40eb74-3b2a-47f7-bf31-fe27484f9bd2&type=pdf>.) Zydus’s Label is available on the government website DailyMed.nlm.nih.gov, which is operated by the National Library of Medicine, National Institutes of Health. (See **Exhibit E**, available at <https://dailymed.nlm.nih.gov/dailymed/about-dailymed.cfm>.) The DailyMed website explains that “[t]he labeling on DailyMed is the most recent submitted labeling to the FDA by companies and currently in use.” (See *id.*) The DailyMed’s profile for Zydus’s ANDA Products is also accessible via Zydus’s website at a link labeled “PRESCRIBING INFORMATION (INCLUDING ANY BOXED WARNINGS).” (See **Exhibit F**, available at Search Results for “Mirabegron” at <https://zydususa.com/generic-products/>.)

15. Zydus's Label, as submitted to the FDA, reports the "Marketing Start Date" for Zydus's 25 mg ANDA Product and Zydus's 50 mg ANDA Product as January 23, 2024. (**Exhibit D** at 34-36.)

16. Zydus, *inter alia*, through its website, advertises that it is marketing 25 mg and 50 mg "Mirabegron ER Tablets" and that those tablets are AB rated to "Brand Equivalent: Myrbetriq®". (See **Exhibit F**, available at Search Results for "Mirabegron" at <https://zydususa.com/generic-products/>.) Zydus's Label also identifies the manufacturer of Zydus's ANDA Products as Zydus Lifesciences Limited. (See **Exhibit D** at 29.) The distributor of Zydus's ANDA Products is identified by Zydus's Label as Zydus Pharmaceuticals (USA) Inc. (See *id.* at 30.) On information and belief, the 25 mg and 50 mg "Mirabegron ER Tablets" on Zydus's website are Zydus's ANDA Products, and Zydus is manufacturing, importing, offering for sale and selling Zydus's ANDA Products under the Zydus ANDA. (See **Exhibit F**; **Exhibit D** at 29-30.)

17. On information and belief, and consistent with their past practices, Zydus Pharmaceuticals (USA) Inc. and Zydus Lifesciences Limited acted collaboratively in the preparation and submission of the Zydus ANDA, and the making, using, selling, offering to sell, and/or importing of some or all of Zydus's ANDA Products.

18. On information and belief, and consistent with their past practices, Zydus Pharmaceuticals (USA) Inc. and Zydus Lifesciences Limited have worked and will work in concert with one another to make, use, offer to sell, and/or sell Zydus's ANDA Products that are the subject of the Zydus ANDA throughout the United States, and/or import such generic drug products into the United States, including in this judicial district.

NATURE OF ACTION

19. This is an action for patent infringement of United States Patent No. 12,097,189 (“the ’189 Patent”), arising under the United States patent laws, Title 35, United States Code. This action relates to the Zydus ANDA submitted under Section 505(j) of the FDCA, 21 U.S.C. § 355(j), seeking and obtaining FDA approval to market Zydus’s ANDA Products, and the making, using, offering to sell, and/or selling of Zydus’s ANDA Products in the United States.

JURISDICTION AND VENUE

20. This Court has jurisdiction over the subject matter of this action under 28 U.S.C. §§ 1331 and 1338(a).

21. This Court has personal jurisdiction over each Defendant because, among other things, each Defendant has committed, aided, abetted, contributed to, or participated in the commission of tortious acts of patent infringement by, *inter alia*, filing an ANDA, receiving final approval to market Zydus’s ANDA Products that are the subject of the Zydus ANDA, and/or making, using, importing, offering for sale, and selling Zydus’s ANDA Products, which has led and will lead to foreseeable harm and injury to Plaintiffs.

22. Each Defendant’s affiliations with the State of Delaware are so continuous and systematic as to render each Defendant essentially at home in this forum, and Zydus Lifesciences Limited is a foreign defendant that is not subject to jurisdiction in any state’s courts of general jurisdiction, making this Court a proper venue for personal jurisdiction.

23. The Court also has personal jurisdiction over each Defendant because, *inter alia*, each Defendant has purposefully availed itself of the rights and benefits of Delaware law by engaging in systematic and continuous contacts with Delaware. Upon information and belief, each

Defendant regularly and continuously transacts business within Delaware, including by selling pharmaceutical products including Zydus's ANDA Products in Delaware, either on its own or through its affiliates. Upon information and belief, each Defendant derives substantial revenue from the sale of those products in Delaware and has availed itself of the privilege of conducting business in Delaware.

24. This Court also has personal jurisdiction over each Defendant because each Defendant has frequently availed itself of the legal protections of the State of Delaware, by, among other things, admitting jurisdiction and/or asserting counterclaims in lawsuits filed in the United States District Court for the District of Delaware. (*See, e.g., Acadia Pharms. Inc. v. Zydus Pharms. (USA) Inc. et al.*, C.A. No. 20-1021 (D. Del.), D.I. 9.)

25. For these reasons, and for other reasons that will be presented to the Court if jurisdiction is challenged, the Court has personal jurisdiction over each Defendant.

26. Zydus has litigated multiple cases relating to Zydus's ANDA Products in the United States District Court for the District of Delaware, and Zydus has not challenged venue as improper in any of those cases. (*See Astellas Pharma Inc. et al. v. Zydus Pharms. (USA), Inc. et al.*, C.A. No. 16-924 (D. Del.), D.I. 18 at ¶ 19; *Astellas Pharma Inc. et al. v. Sandoz Inc. et al.*, C.A. No. 20-1589 (D. Del.), D.I. 60 at ¶ 98; *Astellas Pharma Inc. et al. v. Lupin Ltd. et al.*, C.A. No. 23-819 (D. Del.), D.I. 20 at ¶ 21.)

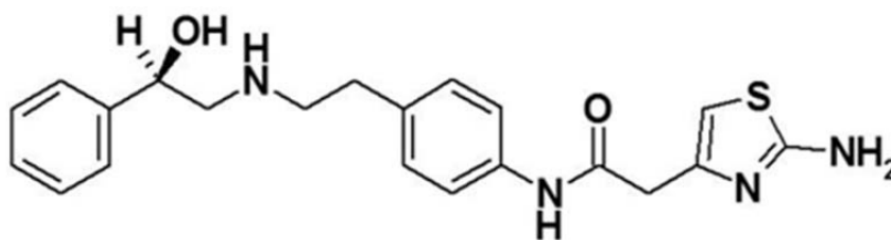
27. Venue is proper in this Court pursuant to 28 U.S.C. §§ 1391 and 1400(b) and/or Fed. R. Civ. P. 4(k)(2).

MYRBETRIQ® TABLETS

28. APGD holds approved New Drug Application (“NDA”) No. 202611 for Myrbetriq® extended-release tablets (“Myrbetriq® Tablets”). The FDA approved NDA No. 202611 on June 28, 2012.

29. Myrbetriq® Tablets contain the active compound mirabegron and are available in two strengths, 25 mg and 50 mg.

30. Mirabegron has been referred to chemically as, *inter alia*, (R)-2-(2-aminothiazol-4-yl)-4'-[2-[(2-hydroxy-2-phenylethyl)amino]ethyl]acetic acid anilide, (R)-2-(2-aminothiazol-4-yl)-4'-[2-[(2-hydroxy-2-phenylethyl)amino]ethyl]acetanilide, and 2-(2-aminothiazol-4-yl)-N-[4-(2-[[[(2R)-2-hydroxy-2-phenylethyl]amino]ethyl]phenyl]acetamide. Mirabegron can be depicted as, *inter alia*, the following formula:



31. Myrbetriq® Tablets comprise sustained release hydrogel-forming formulations of mirabegron in a carrier, *i.e.*, contain either 25 mg or 50 mg of mirabegron in extended-release tablets, and provide a continuous drug release of mirabegron for at least 4 hours after oral administration, as required by one or more claims of the '189 Patent.

32. The FDA approved Prescribing Information for Myrbetriq® (“Myrbetriq® Label”) states that Myrbetriq® Tablets are indicated for the treatment of overactive bladder (“OAB”). A

true and correct copy of the Myrbetriq® Label, revised April 2021, available at https://www.astellas.us/docs/myrbetriq_wpi.pdf, is attached as **Exhibit G**.

33. The FDA approved Prescribing Information for Myrbetriq® instructs that Myrbetriq® Tablets are for oral use and can be taken by adults with or without food.

34. Myrbetriq® Tablets provide a reduced food effect when compared to the food effect after oral administration of an immediate release mirabegron capsule.

35. The reduced food effect provided by Myrbetriq® Tablets, when compared to that after oral administration of an immediate release capsule of mirabegron, is a difference in a rate of decrease of $C_{\max}$ of 10% or more.

THE PATENT-IN-SUIT

36. The United States Patent & Trademark Office (“PTO”) duly and legally issued the ’189 Patent, entitled “Pharmaceutical Composition for Modified Release,” on September 24, 2024. A true and correct copy of the ’189 Patent is attached as **Exhibit A**.

37. The ’189 Patent generally claims methods for treating overactive bladder such that the treating is with a reduced food effect by administering orally to a subject in need thereof certain 25 mg and 50 mg sustained release hydrogel-forming formulations of mirabegron.

38. API is the record owner and assignee of the ’189 Patent.

39. The ’189 Patent will expire no earlier than September 28, 2029.

40. The ’189 Patent’s pediatric exclusivity will extend to March 28, 2030.

41. AICL is the exclusive licensee of the ’189 Patent with the rights to develop, import, market, sell, distribute, and promote any and all pharmaceutical formulations in finished package forms which contain mirabegron as the active ingredient in the United States.

42. APGD has contracted with AICL to, *inter alia*, clinically develop mirabegron and prepare and submit NDA No. 202611 for marketing approval of Myrbetriq® Tablets in the United States.

43. AICL has contracted with Astellas Pharma US, Inc., a subsidiary of API to, *inter alia*, market and sell Myrbetriq® Tablets, in the United States on AICL's behalf.

44. Myrbetriq® Tablets are covered by one or more claims of the '189 Patent.

45. Plaintiffs will list the '189 Patent for Myrbetriq® Tablets in FDA's Orange Book no later than October 24, 2024, which is within the 30-day requirement to list newly-issued patents in the Orange Book. (*See* 21 C.F.R. § 314.53(d)(1)-(3).)

USE OF MYRBETRIQ® TABLETS AS AN EMBODIMENT OF THE '189 PATENT

46. The use of the Myrbetriq® Tablets to treat overactive bladder meets each claim limitation of one or more claims of the '189 Patent.

47. The Myrbetriq® Label provides instructions for a method for treating overactive bladder comprising administering orally Myrbetriq® Tablets, which contain either 25 mg or 50 mg of mirabegron in a sustained release hydrogel-forming formulation, as recited in one or more claims of the '189 Patent. (**Exhibit G** at 1, 3.)

48. When used in accordance with the instructions of the Myrbetriq® Label, the sustained release hydrogel-forming formulations of the Myrbetriq® Tablets provide a continuous drug release for at least 4 hours after oral administration, as recited in the claims of the '189 Patent.

49. When an immediate-release capsule formulation of mirabegron is administered orally, it exhibits a food effect. (**Exhibit A** ('189 Patent) at 1:55-63, 45:22-26.)

50. When used in accordance with the instructions of the Myrbetriq® Label, the sustained release hydrogel-forming formulations of the Myrbetriq® Tablets provide a reduced food effect compared to that after oral administration of an immediate release capsule of mirabegron, and wherein that reduced food effect is a difference in a rate of decrease of $C_{\max}$ of 10% or more, as recited in the claims of the '189 Patent. (**Exhibit G** at 1.)

PRIOR MYRBETRIQ® LITIGATION WITH ZYDUS

51. Within 45 days of receipt of Zydus's 2016 Notice Letter, Astellas initiated a suit for infringement, asserting some of the then-listed patents in the Orange Book for Myrbetriq® Tablets, United States Patent Nos. 7,342,117, 7,982,049, 8,835,474, and RE44,872 against Zydus. (*Astellas Pharma Inc. et al. v. Zydus Pharms. (USA) Inc. et al.*, C.A. No. 16-924 (D. Del.), D.I. 1.) Astellas reached a settlement with Zydus, and Astellas' suit against Zydus concluded. (*Astellas Pharma Inc. et al. v. Actavis Elizabeth LLC et al.*, C.A. No. 16-905 (Cons.) (D. Del.), D.I. 536.)

52. On November 24, 2020, the '780 Patent issued, and Astellas brought suit against Zydus asserting the '780 Patent on the same day. (*Astellas Pharma Inc. et al. v. Sandoz Inc. et al.*, C.A. No. 20-1589 (D. Del.), D.I. 1.) The '780 Patent was timely listed in the Orange Book for Myrbetriq® Tablets. Litigation in the '780 Case between Astellas and Zydus is ongoing.

53. On July 25, 2023, the '451 Patent issued, and Astellas brought suit against Zydus asserting the '451 Patent on July 28, 2023. (*Astellas Pharma Inc. et al. v. Lupin Ltd. et al.*, C.A. No. 23-819 (D. Del.), D.I. 1.) The '451 Patent was timely listed in the Orange Book for Myrbetriq® Tablets. Litigation in the '451 Case between Astellas and Zydus is ongoing.

54. The prior suits did not involve the '189 Patent because, *inter alia*, they were filed prior to the issuance of the '189 Patent.

ZYDUS'S ANDA PRODUCTS

55. Under Section 505(j)(2)(A)(iv) of the FDCA, 21 U.S.C. § 355(j)(2)(A)(iv), an ANDA filer must show that its ANDA product is bioequivalent to the Reference Listed Drug (“RLD”) for that ANDA product.

56. In June 2013, FDA issued a notice in the Federal Register (78 Fed. Reg. 37230 at 30-31 (June 20, 2013)) regarding bioequivalence guidance to be published on its website for mirabegron ANDAs. This guidance (“the Mirabegron Guidance”) requires each mirabegron ANDA filer to complete certain comparative bioequivalence studies against Myrbetriq® Tablets, two in the fed state (*i.e.*, with food) and one in the fasting state (*i.e.*, without food).

57. On information and belief, Zydus was required to run the recommended studies listed in the Mirabegron Guidance in comparison to Myrbetriq Tablets® to meet its bioequivalence requirements for Zydus’s ANDA Products. The Mirabegron Guidance sets a 90% confidence interval “sameness” requirement to establish bioequivalence to Myrbetriq® Tablets. The Mirabegron Guidance also required Zydus to conduct comparative dissolution against the Myrbetriq® Tablets. Zydus received final FDA approval from the FDA for Zydus’s ANDA Products on September 29, 2022. (See **Exhibit B**.)

58. On information and belief, a proposed mirabegron ANDA product will have equivalent dissolution properties, and hence equivalent drug release properties, to Myrbetriq® Tablets. Accordingly, because Myrbetriq® Tablets exhibit a difference in a rate of decrease of $C_{\max}$ of 10% or more, as compared to an immediate release capsule of mirabegron, and provide a continuous drug release for at least 4 hours after oral administration, on information and belief, Zydus’s

ANDA Products likewise reduce the food effect and provide a continuous drug release for at least 4 hours after oral administration, as required by the claims of the '189 Patent.

59. Under Section 505(j)(2)(A)(v) of the FDCA, 21 U.S.C. § 355(j)(2)(A)(v), the prescribing information of Zydus's ANDA Products is required to substantively copy that of Myrbetriq® Tablets. Zydus's Label does substantively copy the Myrbetriq® Label. (*Compare **Exhibit D**, with **Exhibit G**.*)

60. On information and belief, Zydus's ANDA Products comprise sustained release hydrogel-forming formulations of mirabegron in a carrier, *i.e.*, contain either 25 mg or 50 mg of mirabegron in extended-release tablets, as required by the claims of the '189 Patent. (*See **Exhibit D** at 1, 3-5.*) On information and belief, Zydus's ANDA Products comprise sustained release hydrogel-forming formulations comprising polyethylene oxide and polyethylene glycol, as required by some of the claims of the '189 Patent. (*See **Exhibit D** at 34-36.*)

61. On information and belief, as required by the FDA, Zydus includes Zydus's Label with Zydus's ANDA Products, which instructs that Zydus's ANDA Products be administered orally as a tablet to a patient in need of treatment for overactive bladder, as required by the claims of the '189 Patent. Zydus's Label instructs and encourages healthcare professionals to practice the claimed methods of the '189 Patent.

62. Accordingly, Zydus's ANDA Products are 25 mg and 50 mg sustained release hydrogel-forming formulations of mirabegron that meet every claim limitation of one or more claims of the '189 Patent, and Zydus's Label induces their oral use to treat overactive bladder in patients in need thereof, as required by the claims of the '189 Patent.

CLAIMS FOR RELIEF

COUNT I: INFRINGEMENT OF THE '189 PATENT

63. Plaintiffs incorporate by reference and reallege paragraphs 1 through 62 above as though fully restated herein.

64. No later than September 6, 2016, Zydus submitted to the FDA the Zydus ANDA for Zydus's ANDA Products seeking authorization to commercially manufacture, use, import, offer to sell, or sell Zydus's ANDA Products in the United States.

65. Zydus's submission of ANDA No. 209488 seeking approval to engage in the commercial manufacture, use, offer to sell, or sale of Zydus's ANDA Products, prior to the expiration of the '189 Patent, constitutes infringement of at least one or more claims of the '189 Patent under 35 U.S.C. § 271(e)(2)(A).

66. On or about April 19, 2024, Zydus commercially launched Zydus's ANDA Products, and Zydus continues to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Zydus's ANDA Products prior to the expiration of the '189 Patent. **(Exhibit C.)**

67. On information and belief, Zydus knows and intends that physicians, healthcare professionals, and/or patients prescribe, administer, and/or use Zydus's ANDA Products according to Zydus's instructions and/or Zydus's Label in an infringing manner, and therefore induce infringement of at least one or more claims of the '189 Patent with the requisite intent under 35 U.S.C. § 271(b).

68. On information and belief, Zydus is selling and offering to sell Zydus's ANDA Products with provided instructions and/or Zydus's Label in an infringing manner, wherein Zydus's ANDA Products are a material part of the claimed invention, wherein Zydus knows that

physicians prescribe, healthcare providers administer, and/or patients use Zydus's ANDA Products in accordance with Zydus's provided instructions and/or Zydus's Label, wherein such use directly infringes at least one or more claims of the '189 Patent, and wherein generic mirabegron extended-release tablets are not staple articles or commodities of commerce suitable for substantial non-infringing use. On information and belief, Zydus is thus contributing to the infringement of at least one or more claims of the '189 Patent under 35 U.S.C. § 271(c).

69. On information and belief, Zydus's actions relating to the Zydus ANDA were done by and for the benefit of Zydus.

70. At least by the filing date of this Complaint, Zydus will have actual knowledge of the '189 Patent.

71. Unless Zydus's marketing and sale of Zydus's ANDA Products prior to the expiration of the '189 Patent and all other relevant activities are enjoined by the Court, Plaintiffs will be substantially and irreparably harmed for which, Plaintiffs do not have an adequate remedy at law.

72. The manufacture, use, offer for sale, or sale within the United States, or importation into the United States, of Zydus's ANDA Products before the expiration of the '189 Patent and the pediatric exclusivity period associated with it will cause and has caused damage to Astellas, entitling Astellas to damages or monetary relief.

73. Astellas has suffered lost profits and will continue to suffer lost profits for its Myrbetriq® Tablets because of Zydus's infringing acts with respect to Zydus's ANDA Products, including sales that would have been made by Plaintiffs that were either lost as a result of Zydus's infringement or were made at eroded prices because of Zydus's infringement. These lost profits have caused and will cause a loss in revenue available to Astellas for reinvestment, including, *inter*

alia, in research and development opportunities, resulting in long term damage to Astellas' product pipeline and future profits. But for Zydus's infringement, Plaintiffs would not have suffered injury, entitling Plaintiffs to damages in the form of lost profits resulting from at least diverted sales and price erosion, future lost profits due to the curtailment of Astellas' research and development programs, and, in no event, less than a reasonable royalty under 35 U.S.C. § 284.

JURY DEMAND

74. Plaintiffs respectfully request a trial by jury on all issues so triable.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs API, AICL, and APGD pray for a judgment in their favor and against Zydus, and respectfully request the following relief:

A. A judgment that Zydus's submission and maintenance of the Zydus ANDA constituted an act of infringement of the '189 Patent;

B. A judgment that Zydus induces or will induce infringement of the '189 Patent;

C. A judgment that Zydus contributes or will contribute to the infringement of the '189 Patent;

D. A permanent injunction under 35 U.S.C. §§ 271(e)(4)(B) and/or 283 restraining and enjoining Zydus, its affiliates, subsidiaries, and each of its officers, agents, attorneys and employees, and those acting in privity or concert with them, from engaging in the commercial manufacture, use, offer for sale, or sale within the United States, or importation into the United States, of Zydus's ANDA Products until the expiration of the '189 Patent, including any extensions and/or periods of exclusivity to which Plaintiffs and/or the '189 Patent are or become entitled;

E. An order pursuant to 35 U.S.C. § 271(e)(4)(A) directing FDA to rescind the final approval of the Zydus ANDA and that the effective date of any approval of the Zydus ANDA be a date not earlier than midnight on March 28, 2030 corresponding to the expiration of the pediatric exclusivity associated with the '189 Patent, including any extensions and/or other periods of exclusivity to which Plaintiffs and/or the '189 Patent are or become entitled;

F. An order requiring Zydus to take reasonable steps to recall Zydus's ANDA Products from the market;

G. An award of damages pursuant to 35 U.S.C. §§ 271(e)(4)(c) and/or 284 plus pre-judgment and post-judgment interest, including a trebling of damages for Zydus's willful infringement;

H. A declaration that this case is "exceptional" within the meaning of 35 U.S.C. § 285 and an award of reasonable attorneys' fees, costs, expenses, and disbursements of this action; and

I. Such other and further relief as the Court may deem just and proper.

Dated: September 24, 2024

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